

STATE OF MINNESOTA
COUNTY OF HENNEPIN

DISTRICT COURT
FOURTH JUDICIAL DISTRICT

Yibiao LU and JIE HU,

Plaintiffs,

v.

Fire Insurance Exchange, by and through its
attorney-in-fact, Fire Underwriters Association
(d/b/a Farmers Insurance),

Defendant.

**SCHEDULING ORDER
& ORDER TO MEDIATE**

Court File No. 27-CV-26-11606

On September 1 and 4, 2026, Defendant and Plaintiffs filed their respective proposed discovery plans. Plaintiffs' discovery plan proposes deadlines that are more than one year beyond the timeline for similar cases. Accordingly, although the Court will extend its typical deadlines in consideration of Plaintiffs' proposals, the Court will not fully adopt the timeline in Plaintiffs' discovery plan.

The Court makes the following:

ORDER

1. **JOINDER:** Any additional parties must be joined by **November 16, 2026**.
2. **DISCOVERY:** All discovery must be completed by **March 15, 2027**.
 - a. Initial disclosures required under Minn. R. Civ. P. 26.01(a) will be exchanged by **September 25, 2026**.
3. **EXPERTS:** The parties' expert designations and disclosures (including any independent medical examinations) under Minn. R. Civ. P. 26.01(b) must be provided as follows:
 - a. Plaintiffs' expert interrogatories, disclosures, and reports shall be completed and disclosed by **March 15, 2027**.
 - b. Defendant's expert interrogatories, disclosures, and reports shall be completed and disclosed by **April 17, 2027**.
 - c. Rebuttal expert interrogatories, disclosures, and reports shall be completed and disclosed by **May 14, 2027**.

4. **DISCOVERY DISPUTES:** No discovery dispute will be heard by the Court unless the parties have conferred and made a good faith effort to settle their dispute pursuant to Minn. R. Civ. P. 37.01(b) and Gen. R. Prac. 115.10. If the parties are unable to resolve the dispute after good faith efforts, the party raising the unresolved discovery dispute must serve the other party and file a correspondence with the Court, not exceeding three pages, outlining the nature of the dispute and requesting to schedule a conference call with the Court before filing a formal motion. The Court will not consider filings related to the dispute until the matter is considered via conference call.
5. **MOTIONS:** All dispositive and non-dispositive motions must be **HEARD** by this Court by **May 14, 2027**. Parties must follow Gen. R. Prac. 115.05 regarding page limits.
6. **MEDIATION:** This case is hereby referred to mediation with a neutral mediator to be selected by the parties. The parties must notify the Court in writing of the agreed-upon neutral and the date scheduled for mediation by **October 27, 2026**. The mediation costs will be shared equally by the parties. Mediation must be completed by **June 1, 2027**. The following people must attend the mediation: the attorneys who will try the case, the parties involved in the litigation, and any claims adjuster or other person who has authority to settle the case.
7. **PRETRIAL:** An in-person Pretrial Conference, pursuant to Rule 16 of the Minnesota Rules of Civil Procedure, is scheduled for **August 16, 2027 at 9:00 AM**. The same people required to attend mediation are required to attend the Pretrial Conference.
8. **TRIAL:** This case is scheduled for trial during the trial block **beginning September 20, 2027 and ending October 22, 2027**. A comprehensive Trial Order will issue approximately five weeks prior to the start of the assigned trial block. If an attorney or party has a conflict during the trial block that cannot be resolved, the Court and other parties must be notified within 15 days of this Order.

NOTICE: The Court requires motions to exclude expert testimony and objections to deposition testimony be filed at least 30 days before the start of trial.

9. **CONTACTING CHAMBERS:** Parties represented by an attorney may not reach out to the Court directly and must communicate with the Court only through their attorney.

All communication should be directed to the clerk assigned to the case. If parties do not know the email address of the clerk assigned to this case, parties may contact chambers staff generally at the following email address:

4thJudgeAndersonStaff@courts.state.mn.us

10. **INTERPRETER:** If a party requires an interpreter, please contact the Court immediately.
11. **CORPORATE and LIMITED LIABILITY COMPANIES PARTIES:** All corporate and limited liability company parties must be represented by an attorney.

12. **FILING & SERVICE:** Pursuant to Minn. Gen. R. Prac. 14.01(b) and 14.03(d), attorneys are required to use the eFile and Serve System (“eFS”) for electronic filing and service. All attorneys representing a party in the above-captioned matter are required to immediately add themselves for electronic service in this case. Only one email address per party should be added from your “Firm’s Service Contacts”. If additional attorneys or staff wish to receive service, they should use the “Administrative Copy” field or the “Other Service Contacts” options. Adding multiple service contacts to an individual party or parties impacts case processing and access to the public record.

Anything the Court files will be distributed electronically. If an attorney does not sign up for electronic service in this case, the Court will not send that attorney or that attorney’s client a hard copy of documents.

For more information about electronic case service sign-up, refer to the Registered User Filing Guide at www.mncourts.gov/efile or contact the eCourtMN Support Center: (651) 227-2002 or (855) 291-8246.

a. Self-Represented Litigants

- i. Self-Represented Litigants are excluded from the eFS requirement. To file documents with the Court, self-represented litigants may: (1) electronically file and serve using eFS (E-File Help Line is (651) 227-2002); (2) mail the documents to Civil Filing; or (3) hand deliver the documents to the Civil Filing counter on the third floor of the courthouse. The address for Civil Filing is:

Hennepin County District Court
Attn: Civil Filing
300 South 6th Street, #C-332
Minneapolis, MN 55487-0332

- ii. Mailing or delivering documents to Judge Anderson (rather than Civil Filing) does NOT file the documents into the court record or satisfy a filing requirement. Documents sent directly to the judge will not be considered by the Court.
- iii. All communication and documents filed with the Court must be served on all other parties’ attorneys or on the opposing party directly if they are not represented by an attorney.
- iv. Questions? Contact Civil Filing (612) 348-3164, or Self-Help (651) 435-6535, Monday – Friday from 8:30 a.m. to 3:00 p.m., or visit <https://www.mncourts.gov/> for “Self-Help” Resources, including Forms, Court Rules and Trial Handbooks for Self-Represented Litigants.

13. **ARTIFICIAL INTELLIGENCE (“AI”):** Every filing must be accurate, reliable, and independently verified. The use of AI tools does not excuse errors or misrepresentations and does not shift responsibility for the content of a filing. All parties must confirm the legitimacy of

all citations, quotations, and arguments before filing them with the court. AI-assisted filings remain subject to all applicable rules, including certifications under Rule 11.02, and sanctions may issue for violations.

14. **EXHIBIT LISTS:** The attorneys and/or self-represented parties shall comply with Minn. Gen. R. Prac. Part H, § 12 (Exhibits). Counsel and/or self-represented parties shall meet and confer before trial to organize exhibits and exhibit lists, eliminate duplicate exhibits, and attempt to resolve any objections to exhibits. Each party shall prepare a list of exhibits to be offered in evidence, and exchange copies of such lists with the opposing party prior to the pre-trial conference. Exhibit lists shall briefly describe each exhibit anticipated to be offered in evidence and shall be **filed with the court no later than two weeks before the trial date**. For any remaining objections to exhibits, the parties must be prepared to specify grounds for objections with authorities.
15. **EXHIBIT EXCHANGE:** Pursuant to the rules, prior to the commencement of trial, copies of all documents, images, and audio or visual media on the list of exhibits shall be made available by the proponent for examination and copying by any other party.
16. **MNDES:** All proposed documentary, photographic, and audio or visual media exhibits shall be submitted to the court electronically via the Minnesota Digital Exhibit System (MNDES) and “shared” with opposing parties in MNDES before any trial or evidentiary hearing.¹ Counsel and/or self-represented parties may register to use MNDES and find useful training resources at www.mncourts.gov/mndes.
 - a. Any exhibit that any party intends to offer at a trial or evidentiary hearing must be uploaded and shared with all parties via the MNDES system at least **one week** prior to the commencement of the trial or hearing. **Failure to upload and/or share an exhibit may result in the court excluding the exhibit from evidence.**
 - b. Each exhibit must be uploaded to MNDES individually. Do not combine all exhibits into one document or single exhibit. Each individual exhibit must include in the “Description” field information that briefly describes the exhibit’s content in a neutral manner that is easily identifiable. Include names, dates, and locations where appropriate (e.g., “Plaintiff’s image of red car taken 1/1/2023 at Defendant’s home”). The descriptions in MNDES should exactly match the descriptions in the party’s exhibit list.
 - c. For each exhibit uploaded to MNDES, the parties shall identify the exhibit number in the “Exhibit #” field. Exhibit numbers should be consecutive for each party. Plaintiff may use numbers [001-499]. Defendant may use [500-999], and so on for additional parties. If exhibits need to be related to one another, use dashes or decimals (example: 0001-1 or 0001.1). If a party has more than 499 exhibits, please contact the court for further instruction.
 - d. For any exhibit that is more than one page in length, the parties are required to include page numbers or Bates numbers for the exhibit pursuant to Minn. Gen. R. Prac. 16.

¹ Note that “sharing” exhibits with other parties in MNDES is not a substitute for the meet and confer requirements outlined in paragraphs 1 and 2. Sharing exhibits in MNDES is a supplement to the formal exhibit exchange requirements provided by the Rules. The parties must still endeavor to organize exhibits and exhibit lists, eliminate duplicates, and resolve objections where possible. Sharing exhibits in MNDES may satisfy the requirement to make exhibits available for examination and copying if the parties agree.

- e. Exhibits should be uploaded as “public” unless otherwise provided by law or court order.²
 - f. If an exhibit contains sensitive information that is not relevant or necessary to the case, a party may redact that information before uploading the exhibit. Do not upload into MNDES any images, documents, or other materials containing sexual content or nudity. Contact court staff for assistance with exhibits containing such material.
 - g. Physical exhibits that cannot be digitized shall be brought to the courtroom. Once offered and accepted, court staff will label and upload a physical exhibit tracking sheet for the exhibit into MNDES.
 - h. If a party plans to use MNDES for displaying exhibits in the courtroom during a hearing, the party shall bring their own device for displaying the exhibit by connecting to the party’s display technology or the court’s technology (if available).
 - i. Uploading exhibits through MNDES does not guarantee review of that evidence by the court. The judge will not consider an exhibit until it has been offered to be accepted as evidence at the time of the hearing or trial.
 - j. **Do not contact the judge’s staff for help with using MNDES.** Instructions for uploading and sharing proposed exhibits in MNDES and additional training resources are available at www.mncourts.gov/mndes. You may also contact MNDES Support through that webpage for assistance, or reach them by phone at 651-413-8160 (if calling from Twin Cities Metro) or 833-707-2791 (if calling from outside of the metro area).
 - k. For more details regarding MNDES requirements in Fourth District civil trials and evidentiary hearings, please review the District Court’s [Standing Order](#)
17. **PAPER COPIES:** The parties shall bring to the courtroom two paper copies of any document or photographic exhibits at the time of the hearing or trial. One copy will be for the court’s use, and one copy for the witness stand which may also be used by the jury during deliberation. The parties shall certify on the record that the paper copies provided to the court are true and accurate copies of the exhibits that were uploaded to MNDES.
18. **SANCTIONS:** Failure to comply with this Order may subject a party to appropriate sanctions, including the assessment of monetary penalties, dismissal, entry of default judgment, striking of pleadings, or such other relief as the Court may deem appropriate.

Dated: September 8, 2026

Jamie L. Anderson
Judge of District Court

² By Order of the Minnesota Supreme Court, exhibits uploaded and stored in MNDES but not offered to the court are not records of the Minnesota Judicial Branch and are therefore not publicly accessible unless otherwise ordered by the judicial officer. Once an exhibit is offered and excepted as evidence in a public case, it is a “case record” under Rule 3 of the Rules of Public Access and may be accessible to the public.